



FORMAL COMPLAINT - Case WECT24486-25/WECT23564-25 - Commissioner Nthabiseng Misconduct & Bias

7 messages

Wilbur William Matthee <info@ethichawks.co.za> Sat, 10 Jan 2026 at 02:11
To: ctn@ccma.org.za, info@ccma.org.za <info@ccma.org.za>, complaints@ccma.org.za, ccma@behonest.co.za
Bcc: wilburmat@gmail.com

Case Number: WECT24486-25/WECT23564-25

Date: 10 January 2026

Dear CCMA Director/ Regional Senior Commissioner

I am lodging a formal complaint regarding the gross irregularities and bias displayed by Commissioner Nthabiseng during my conciliation on 09 January 2026. I am a specialist nurse and a protected whistleblower under the Protected Disclosures Act (PDA). I attended the session while in a state of humanitarian crisis, currently homeless due to the retaliatory actions of my former employer.

- **GROUND'S OF COMPLAINT**

A. Pre-judgment and Failure to Apply Mind

At the very beginning of the session, the Commissioner stated, "nothing here relates to a protected disclosure dispute". This was said before I could present evidence of the "P1" risk reports and Board-level disclosures I made. This immediate dismissal demonstrates a "closed mind" and a failure to investigate the true nature of my referral.

B. Breach of the "Helping Hand" Principle

Under CCMA guidelines, a Commissioner has a duty to assist self-represented parties.

#The "Google it" Incident: When I explained that I am in a crisis, have never navigated the court system, and asked for the location of the Labour Court, the Commissioner replied: "You're gonna have to... Google it or something like that".

- **Impact:** Telling a destitute, self-represented person in a crisis to "Google" their path to justice is a failure of professional duty and an act of extreme dismissiveness.

C. Misdirection on Jurisdiction and Laws

The Commissioner repeatedly claimed the CCMA "doesn't have the power" to deal with protected disclosures.

- **The Error:** While the Labour Court arbitrates automatically unfair dismissals, the CCMA is mandated to conciliate them first.

- Discrimination: She further refused to "entertain" my claims of gender identity discrimination based on an earnings threshold. This is incorrect; the CCMA has a duty to conciliate discrimination claims regardless of income.

D. Bias Toward the Employer

The Commissioner "descended into the arena" by immediately agreeing with the employer's representative that the matter should move to the Labour Court. She ignored my detailed evidence that I did follow internal communication lines to the level of the Board, only to be met with "institutional silence" and salary cuts. By siding with the employer's technicalities, she ignored the substantive merits of my victimization.

3. EVIDENCE

I have an audio recording of this session (admissible under RICA) which confirms the Commissioner's dismissive tone and the specific "Google it" instruction.

4. DESIRED OUTCOME

I request that the Certificate of Outcome be set aside due to these irregularities. I demand a new conciliation session before a Senior Commissioner who is competent in the Protected Disclosures Act and can provide the "helping hand" required for a person in my vulnerable position.

Sincerely,

Sr. Wilbur Matthee

Specialist Nurse Health Services Manager
SRN | BTech Psych, Midw, Community | BCur HNM | PG Dip HSM (NQF 8)

OBJ

Maggie Kunutu <MaggieK@ccma.org.za>
To: info@ethichawks.co.za <info@ethichawks.co.za>
Cc: Retha Ludeke <RethaL@ccma.org.za>

Mon, 12 Jan 2026 at 16:32

Dear Sr Wilbur

We acknowledge receipt of your complaint.

Kindly be advised that the complaint has been escalated to the region for investigation.

The outcome is due within 14 working days (excluding weekends and public holidays).

We would like to thank you for making us aware of the services received while requesting our assistance in your matter.

Please do not hesitate to contact us should you need any clarity.

Regards

Complaints Management

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Telephone: | Mobile:

CCMA Website: <https://www.ccma.org.za>



<ccma@behonest.co.za>

Mon, 12 Jan 2026 at 17:14

To: Wilbur William Matthee <info@ethichawks.co.za>

Dear Complainant

We acknowledge receipt of your complaint.

Please note that this fraud line only deals with complaints pertaining to theft , corruption, fraud, unethical behaviour, dishonesty or protected disclosures.

Complaints pertaining to CCMA Service, alleged Commissioner misconduct and / or alleged CCMA Employee misconduct must be sent to complaints@ccma.org.za or can be lodged on the CCMAConnect App or via the CCMA Chatbot in line with the Standard Operating Procedures.

Please note:

-The CCMA's whistleblowing channel is not operated directly by the CCMA but managed independently by The Ethics & Fraud Hotline to ensure honest, strong, and legitimate reporting of any reported incidents alleged to be perpetrated by or against the CCMA.

-The independence of the CCMA Whistleblowing Hotline ensures protection of rights and identity of the whistleblowers as per the Protected Disclosure Act.

- This mailbox is strictly for reporting fraud and corruption or any similar irregularities alleged to be perpetrated by or against the CCMA. Other platforms include:

- Toll-free telephone number: **0860 666 348**
- WhatsApp number: **0860 004 004**
- Email address: ccma@behonest.co.za
- Online and chat: www.behonest.co.za

The CCMA maintains a zero tolerance stance against fraud or and any other corrupt activities. We encourage you to report honestly and responsibility

Kind regards
The Ethics & Fraud Hotline obo CCMA

Wilbur William Matthee <info@ethichawks.co.za>
To: Maggie Kunutu <MaggieK@ccma.org.za>

Mon, 12 Jan 2026 at 20:33

Dear Maggie Kunutu,

Thank you for the update. I look forward to receiving the outcome within the 14-day period.

Best regards

Sr. Wilbur Matthee

Specialist Nurse Health Services Manager
SRN | BTech Psych, Midw, Community | BCur HNM | PG Dip HSM (NQF 8)
Founder: Ethic Hawks

OBJ

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CCMA Email <ccma@behonest.co.za>
To: Wilbur William Matthee <info@ethichawks.co.za>

Tue, 13 Jan 2026 at 12:13

Good day,

Kindly note that you are through to the CCMA Ethics and Fraud Hotline, which is run by an independent service provider. Please contact the CCMA directly with your query. 011 377 6696 / (011) 377-6650/6600 /0861161616 / Info@ccma.org.za

For complaints, please reach them through this email complaints@ccma.org.za or can be lodged on the CCMAConnect App or via the CCMA Chatbot

Alternatively, contact the Department of Labor directly with your query. 012 309 4000/5000 or alternate numbers: 012 373 4434/ 011 853 3030/ 011 861 6130.

Kind regards,
Ethics and Fraud Hotline
hotline@behonest.co.za

On 12/01/26, at 17:14:21, Wilbur William Matthee <info@ethichawks.co.za> wrote:

BE AWARE

This message appears to have come from a newly registered domain

Be sure to check that you know and trust the sender or contact itsc@digicall.co.za

Case Number: WECT24486-25/WECT23564-25

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Wilbur William Matthee <info@ethichawks.co.za>

Tue, 13 Jan 2026 at 16:56

To: CCMA Email <ccma@behonest.co.za>

Thank you for your response.

Sr. Wilbur Matthee

Specialist Nurse Health Services Manager

SRN | BTech Psych, Midw, Community | BCur HNM | PG Dip HSM (NQF 8)

Founder: Ethic Hawks

[OBJ]

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<ccma@behonest.co.za>

Wed, 14 Jan 2026 at 07:22

To: Wilbur William Matthee <info@ethichawks.co.za>

Dear Complainant

We acknowledge receipt of your complaint.

Please note that this fraud line only deals with complaints pertaining to theft ,

corruption, fraud, unethical behaviour, dishonesty or protected disclosures.

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